

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Plaintiff designates
Queens County as the
place of trial

-----X
TYSON BOATENG,

:

Basis of venue is county
of occurrence

Plaintiff,

-against-

:

SUMMONS

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL CERULLO,
NYPD DETECTIVE VENTICINQUE,
NYPD DETECTIVE BETTIS and
NYPD OFFICERS "JOHN DOE 1-4",

:

:

Defendants.

:

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To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service of this summons if not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
September 1, 2020



JAMES KOUSOUROS, ESQ.

The Law Offices of James Kousouros
Attorney for Tyson Boateng
260 Madison Ave., 22nd Floor
New York, New York 10016
(212) 532-1934

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Detective Michael Cerullo
c/o NYPD 105 Pct.
92-08 222nd St
Queens Village, NY 11428

Detective Venticinque
c/o NYPD 105 Pct.
92-08 222nd St
Queens Village, NY 11428

Detective Bettis
c/o NYPD 105 Pct.
92-08 222nd St
Queens Village, NY 11428

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

TYSON BOATENG, :

Plaintiff,

-against- :

VERIFIED COMPLAINT

THE CITY OF NEW YORK,
NYPD DETECTIVE MICHAEL CERULLO, :
NYPD DETECTIVE VENTICINQUE,
NYPD DETECTIVE BETTIS and
NYPD OFFICERS "JOHN DOE 1-4", :

Defendants. :

-----X

Plaintiff, Tyson Boateng, by his attorney, the Law Offices of James Kousouros, for his complaint herein, alleges and states the following, upon information and belief:

PRELIMINARY STATEMENT

1. The is a civil rights action brought to vindicate Plaintiff's rights under, *inter alia*, the Fourth, Fifth, Sixth, and Fourteenth Amendments of the United States Constitution, as codified in 42 U.S.C. § 1983, along with accompanying claims under New York state law.

2. Plaintiff Tyson Boateng's rights were violated when officers of the New York City Police Department ("NYPD") unconstitutionally arrested him and charged him with the murder of Zanu Simpson. By reason of defendants' unlawful actions, Plaintiff was incarcerated for 358 days, suffered severe mental anguish, past and future economic loss, damage to his reputation, emotional distress and humiliation, and was deprived of the rights guaranteed him by the United States Constitution.

3. Plaintiff also seeks an award of compensatory and punitive damages and attorneys' fees.

4. Pursuant to New York State General Municipal Law § 50-e, plaintiff filed a timely Notice of Claim with the New York City Comptroller and the Comptroller designated the claim as number 2020PI004575.

5. Plaintiff's claims were not adjusted by the New York City Comptroller's Office within the period of time provided by statute.

PARTIES

6. Plaintiff, Tyson Boateng, is and was at all times relevant to this action, a resident of Queens County.

7. Defendant the City of New York ("The City") is a municipal corporation created and authorized under the laws of the State of New York.

8. The City maintains a police force, the New York City Police Department ("NYPD"), which acts as its agent in the area of law enforcement and for which it is responsible.

9. The City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD.

10. At all relevant times herein, NYPD Detectives Michael Cerullo, Venticinque, Bettis and Officers John Doe 1 – 4 (collectively the "Individual Defendants") were officers, employees, or agents of the NYPD.

11. The true names and shield numbers of NYPD Officers John Doe 1 – 4 are not currently known to Plaintiff. However, they are employees or agents of the NYPD.

12. At all relevant times herein, the Individual Defendants were acting under the color of state law.

13. At all relevant times herein, the Individual Defendants were acting under the scope of their employment at NYPD.

14. At all relevant times herein, the Individual Defendants were acting together in a joint venture.

15. The Individual Defendants' actions complained of herein were intentional, reckless, with malice, and in gross disregard of Plaintiff's rights.

16. The Individual Defendants are being sued in their individual capacities.

STATEMENT OF FACTS

17. On July 25, 2017, Zanu Simpson was murdered in Queens County.

18. At the time of the murder, Plaintiff was at home with his fiancé and young child, several miles away from where the murder occurred.

19. However, based on an uncorroborated tip, the Individual Defendants' investigation focused on Plaintiff immediately.

20. On or about July 26, 2017, the Individual Defendants contacted Plaintiff, and asked him to surrender to the 105th precinct.

21. On or about August 7, 2017, the Individual Defendants handcuffed and arrested Plaintiff, without reasonable suspicion or probable cause, upon his surrender to the 105th precinct.

22. The Individual Defendants gave false or misleading information, and made false sworn statements, to the Queens District Attorney's office including that Plaintiff shot and killed Zanu Simpson.

23. Based upon the false information provided by the Individual Defendants, the Queens District Attorney's office charged the defendant with Murder in the Second Degree.

24. Plaintiff was remanded to custody without bail.

25. Plaintiff remained in custody for approximately 358 days.

26. Due to the high-profile nature of the case, Plaintiff's identity and the false allegations against him were posted all over local media sources.

27. During his incarceration, Plaintiff, by counsel, provided evidence of his innocence to the Queens District Attorney's office, including cell site information, GPS location history, and alibi witnesses.

28. Upon information and belief, this evidence exonerating Plaintiff was provided to the Individual Defendants.

29. Additionally, DNA evidence obtained from the scene of the crime also excluded Plaintiff as the perpetrator.

30. Nevertheless, Plaintiff continued to be incarcerated due to false and misleading information provided by the Individual Defendants and their continuous failure to properly investigate the case.

31. Moreover, Individual Defendants acted maliciously to cover up for their own misconduct in falsely arresting Plaintiff.

32. The case was ultimately dismissed and terminated favorably to Plaintiff on or about November 6, 2019.

33. The criminal proceedings lasted over two years, during which, Plaintiff was compelled to appear in Queens County Criminal Court on dozens of occasions and thereby deprived of his liberty and freedom to travel.

34. The actions of the Individual Defendants in arresting Plaintiff were reckless, malicious, intentional, and in gross disregard of Plaintiff's rights.

35. As a result of the Individual Defendants' actions, Plaintiff was deprived of his freedom and liberty, suffered severe mental anguish, past and future economic loss, damage to his reputation, emotional distress and humiliation.

36. The arrest of Plaintiff, without probable cause, was part of a pattern of conduct by NYPD in arresting young men of color without probable cause and in failing to properly investigate cases where suspects or victims are people of color.

FIRST CAUSE OF ACTION
FALSE ARREST AND FALSE IMPRISONMENT UNDER FEDERAL LAW PURSUANT
TO 42 U.S.C. 1983

37. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

38. Individual Defendants, acting under the color of state law, deprived Plaintiff of the rights, privileges, and immunities granted to him by the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. freedom from unreasonable search and seizure of Plaintiff's person;
- b. freedom from arrest without probable cause; and
- c. freedom from false imprisonment.

39. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

SECOND CAUSE OF ACTION
DENIAL OF RIGHT TO A FAIR TRIAL UNDER 42 U.S.C. 1983

40. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

41. By knowingly, intentionally, and recklessly providing false information in support of Plaintiff's prosecution, Individual Defendants deprived Plaintiff of his right to a fair trial in violation of the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

42. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

THIRD CAUSE OF ACTION
FAILURE TO INTERVENE UNDER 42 U.S.C. 1983

43. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

44. The Individual Defendants' failure to intervene in the unlawful actions of their fellow officers violated Plaintiff's rights in violation of the Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

45. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

FOURTH CAUSE OF ACTION
LIABILITY OF THE CITY UNDER 42 U.S.C. 1983

46. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

47. At all relevant times herein, the Individual Defendants' actions were a result of the City's deliberate indifference to a pattern of unconstitutional conduct by the NYPD.

48. At all relevant times herein, NYPD routinely arrested young men of color without probable cause.

49. At all relevant times herein, NYPD routinely failed to properly investigate cases involving suspects who were people of color.

50. Plaintiff is a person of color.

51. The City was aware of and deliberately disregarded NYPD's pattern of unlawful arrests and failure to properly investigate cases involving people of color, thus amounting to an institutional policy to such effect.

52. At all relevant times herein, it was also a custom, policy, and practice of the City to inadequately screen police officers prior to employment.

53. At all relevant times herein, it was also a custom, policy, and practice of the City to inadequately train police officers regarding individuals' constitutional rights, and to train officers how to properly investigate cases to determine whether probable cause exists.

54. At all relevant times herein, it was also a custom, policy, and practice of the City to retain officers, including but not limited to the Individual Defendants, who disregarded individuals' constitutional rights.

55. The City's deliberate indifference, amounting to institutional policy, was a proximate cause to and resulted in the injuries complained of above.

FIFTH CAUSE OF ACTION
FALSE ARREST AND FALSE IMPRISONMENT UNDER NEW YORK STATE LAW

56. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

57. Individual Defendants falsely arrested Plaintiff, without probable cause, and without any legal right or authority to do so in violation of Plaintiff's rights as guaranteed by the statutes, laws and Constitution of the State of New York.

58. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

59. The City is vicariously liable for Individual Defendants' actions under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION
INTENTIONAL AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS

60. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

61. Defendants engaged in extreme and outrageous conduct, shocking to the conscience, which intentionally and/or negligently caused severe emotional distress to Plaintiff.

62. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

63. The City is vicariously liable for Individual Defendants' actions under the doctrine of respondeat superior.

SEVENTH CAUSE OF ACTION
NEGLIGENT HIRING, TRAINING, SUPERVISION, AND RETENTION

64. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

65. Defendant City negligently hired, trained, supervised, and retained the Individual Defendants.

66. The City failed to properly train the Individual Defendants in investigating cases, looking for evidence and determining whether or not probable cause exists.

67. The City knew that the Individual Defendants had previously violated individuals' constitutional rights and had a propensity to violate individuals' constitutional rights.

68. The City took no remedial actions to train, discipline, or otherwise educate the Individual Defendants about the bounds of what is constitutionally permissible.

69. The City's actions were a proximate cause to and resulted in the injuries complained of above.

EIGHTH CAUSE OF ACTION
MALICIOUS PROSECUTION

70. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

71. The Individual Defendants submitted false and misleading police reports and other documents and caused a prosecution to be commenced against Plaintiff.

72. The Individual Defendants' actions constituted a malicious prosecution under New York State law.

73. The malicious prosecution continued even after Plaintiff provided evidence demonstrating his innocence to the Queens District Attorney's office, who in turn provided this evidence to the Individual Defendants.

74. Individual Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

75. The City is vicariously liable for Individual Defendants' actions under the doctrine of respondeat superior.

NINTH CAUSE OF ACTION
NEGLIGENCE

76. Plaintiff repeats and realleges every allegation set forth above as though fully set forth herein.

77. Individual Defendants and the City, jointly and severally, negligently caused the above-described injuries and damage to Plaintiff.

78. Defendants' actions were a proximate cause to and resulted in the injuries complained of above.

79. The City is vicariously liable for Individual Defendants' actions under the doctrine of respondeat superior.

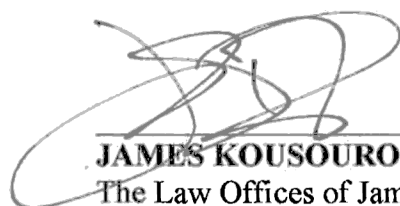
JURY DEMAND

71. Plaintiff demands a trial by jury in their action on each and every one of his causes of action.

WHEREFORE, Plaintiff demands judgment against the defendants individually and jointly and prays for the following relief:

- a. That he be compensated for the violation of his constitutional rights, as well as, the deprivation of freedom and liberty, severe mental anguish, past and future economic loss, damage to his reputation, emotional distress and humiliation suffered by him;
- b. That he be awarded punitive damages against the Individual Defendants; and
- c. That he be compensated for attorneys' fees and the costs and disbursements for this action pursuant to 42 U.S.C. 1988; and
- d. For such other and further relief as to the Court may seem just and proper.

Dated: New York, New York
September 1, 2020



JAMES KOUSOUROS, ESQ.

The Law Offices of James Kousouros
Attorney for Tyson Boateng
260 Madison Ave., 22nd Floor
New York, New York 10016
(212) 532-1934
James@kousouroslaw.com

VERIFICATION

JAMES KOUSOUROS, an attorney duly admitted to practice law in the State of New York, hereby affirms, under penalty of perjury:

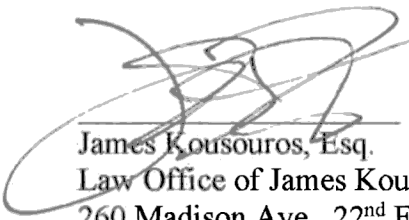
That I am the attorney for Plaintiff in this matter.

That I have read the foregoing Complaint and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be upon information and belief; and as to those matters, I believe them to be true.

That the reason this verification is made by your affirmant and not by Plaintiff is that Plaintiff currently is not in the County where your affirmant maintains his office.

That affirmant's belief as to all matters not stated upon his knowledge are based upon the records, reports, and documents contained in Plaintiff's file which is maintained by affirmant's office.

Dated: New York, New York
 September 1, 2020



James Kousouros, Esq.
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